

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
Case No. CV-2023-0312

Hearing Date: **January 16, 2026** **Department Eight** **9:00 a.m.**

On the Court's own motion, plaintiff Xinyao Zhou's motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **CONTINUED** to January 16, 2026, **at 1:30 p.m.** in Department Eight.

Defendant Hotel Winters, LLC's objections to plaintiff's notice of errata are **SUSTAINED IN PART**. Although plaintiff did not sign the notice of motion, she signed the motion. (See Motion, p. 18; Code Civ. Proc., § 128.7, subd. (a).) To the extent that she improperly failed to sign the notice of motion, the Court finds that this was a clerical error, capable of being corrected by a notice of errata. (See *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 834; *Flores v. Nature's Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 6.) However, as to the separate statement attached to the notice of errata, this is a substantive change to plaintiff's motion. (Cal. Rules of Court, rule 3.1345(a) ["Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement"].) Therefore, the Court does not consider the separate statement filed with plaintiff's notice of errata. While defendant requests attorney's fees under Code of Civil Procedure section 2023.010 and 128.7, a request for sanctions under section 128.7 must "be made separately from other motions or requests." (Code Civ. Proc., § 128.7, subd. (c)(1).) Further, as to section 2023.010, defendant does not identify which subdivision of this statute plaintiff violated by filing an improper notice of errata. (See Code Civ. Proc., § 2023.010.)

Defendant's opposition to and request to strike plaintiff's supplemental declaration is **DENIED**. "The general rule of motion practice...is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, plaintiff's supplemental declaration and the exhibit attached thereto did not address "substantive issues in the first instance but only filled gaps in the evidence created by the...opposition." (*Id.* at p. 1538.)

Plaintiff's motion to compel compliance, compel further responses, issue preservation order, and request for monetary sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, 2031.320.) First, as to plaintiff's request to compel compliance, defendant did not fail to permit the "inspection, copying, testing, or sampling in accordance with [their] statement of compliance." (Code Civ. Proc., § 2031.320, subd. (a); Zhou decl., ¶ 4, Exhibit C.) In the identified verified responses, defendant stated that when the individual who has access to responsive information is medically able, defendant will search and produce non-privilege responsive documents in its possession, custody, or control. (Zhou decl., ¶ 4, Exhibit C, RFP nos. 1-4, 6, & 10-11.) Plaintiff has not shown that defendant has not complied with this statement. (Code Civ. Proc., § 2031.320, subd. (a); see Mehta decl., ¶ 3.)

Second, as to plaintiff's request to compel further responses, based on the evidence presented, it appears that the parties had a written agreement to extend plaintiff's deadline to file a motion to compel further. (Code Civ. Proc., § 2031.310, subd. (c); Zhou decl., ¶ 8, Exhibit F; Mehta decl., ¶ 9, Exhibit F; Zhou suppl. decl., ¶ 5, Exhibit A.) However, plaintiff did not submitted a meet and confer declaration showing a reasonable and good faith attempt at an information resolution regarding defendant's *responses* to the identified requests for production. (Code Civ. Proc., §§ 2031.310, subd. (b)(2), 2016.040; Zhou decl., ¶¶ 14-15, Exhibits H & I.)

Finally, as to plaintiff's request for a preservation order, plaintiff has failed to provide sufficient legal authority to support this request. (*Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also *Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223; *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, 11-12.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, 2031.320.) Defendant did not unsuccessfully oppose this motion.

Defendant's request for sanctions is **GRANTED**, in the amount of **\$8,370.00** against plaintiff. (Code Civ. Proc., §§ 2031.310, 2031.320, 2023.010; Mehta decl., ¶¶ 27-29, 31.) The Court declines to award sanctions for time not yet incurred. The Court finds a reasonable hourly rate for Mr. Mehta is \$465. (See *Heritage Pacific Financial, LLC, supra*, 215 Cal.App.4th at p. 1004 ["The reasonable hourly rate is that prevailing in the community for similar work"]; Mehta decl., ¶ 31 ["This Court previously awarded Counsel an hourly rate of \$465.00"].) Plaintiff shall pay the sanction by **February 17, 2026**.

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

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Plaintiff Xinyao Zhou’s motion for leave to file demurrer and amended motion to strike is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 430.40, subd. (b), 435, subd. (b)(1).) In her moving papers, plaintiff did not provide sufficient legal authority to support her request for leave to file a demurrer and an amended motion to strike. (See *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73-74; see also Code Civ. Proc., § 1008, subd. (b); Zhou decl., ¶¶ 3-5.) The Court does not consider new legal authority provided for the first time in plaintiff’s reply. (*Balboa Ins. Co. v. Aguirre* (1983) 149 Cal.App.3d 1002, 1010 [“The salutary rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before”].)

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